

26STLC02958 26STLC02958

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 26STLC02958 Hearing Date: July 14, 2026 Dept: 26

TENTATIVE

RULING:

Defendant City

of Los Angeles' Demurrer to the Complaint is sustained without leave to amend.

Analysis:

Plaintiff Ronnie Polk ("Plaintiff") filed the instant action for civil rights violations against Defendant City of Los Angeles ("Defendant") on April 30, 2026. On June 3, 2026, Defendant filed and served the instant Demurrer to the Complaint. No opposition has been filed to date.

Discussion

The Complaint alleges causes of action for civil rights violations arising from a parking citation issued to Plaintiff. (Compl., ¶¶1-20.) Specifically, Plaintiff alleges that the Los Angeles Police Department violated its fundamental duties to consider and resolve a citizen complaint in accordance with the law. (Id. at ¶1.) Plaintiff pursued a small claims action related to the incident but did not recover any damages. (Id. at ¶6.) Plaintiff formally complained in a certified letter dated April 29, 2024. (Id. at ¶7.) After LAPD responded, Plaintiff sent a second letter on May 20, 2024. (Id. at ¶19.) When LAPD did not respond, Plaintiff contacted the Office of the Inspector General ("OIG") by letter on July 29, 2024. (Id. at ¶22.) LAPD sent a response dated November 20, 2024 that failed to address Plaintiff's concerns. (Id. at ¶¶24-32.) Plaintiff again contacted OIG, and ultimately

OIG responded on May 23, 2025, stating that it concluded the allegations were not proven by a preponderance of the evidence.

(Id. at ¶¶35-39.) Plaintiff

filed a claim for damages with the City Clerk on October 8, 2025, which was denied by written letter on November 6, 2025.

(Id. at 41.) Plaintiff

thereafter sued the City on April 28, 2025.

(Id. at ¶¶43.) The Complaint

asserts causes of action for what it characterizes as the following violations of California Law: (1) LAPD Failed to “Listen”; (2) LAPD Failed to “Determine Strategy”; (3) LAPD Failed to “Research”; (4) LAPD Failed to “Summarize”; and (5) LAPD Never Contacted the Plaintiff.

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41. (Demurrer, Ford Decl., ¶13.) Defendant demurs to the Complaint for failure to allege sufficient facts, citing Code of Civil Procedure section 430.10, subdivision (e). In support of the Demurrer, Defendant asks the Court to take judicial notice of (1) Plaintiff’s Tort Claim concerning this incident submitted to the City of Los Angeles on September 30, 2020; (2) Defendant’s Government Claims Act denial letter to Plaintiff, dated October 26, 2020; (3) Plaintiff’s Tort Claim concerning this incident submitted to the City of Los Angeles on October 8, 2025; and (4) Defendant City of Los Angeles’s Government Claims Act denial letter to Plaintiff, dated November 6, 2025. The Court takes judicial notice of these documents pursuant to Evidence Code section 452, subdivision (c).

Defendant first demurs on the basis that the Complaint is barred by the statute of limitations under the Government Claims Act. When brought against a public entity, a claim for money damages must be submitted to said entity prior to bringing a lawsuit. (Gov. Code, § 905; *Rason v. Santa Barbara City Housing* (1988) 201 Cal.App.3d 817, 822.) A claim for death or injury to person or property must be submitted no later than six months after the cause of action accrued. (Gov. Code, § 911.2, subd. (a).) Claims relating to any other cause of action must be presented within a year. (Id.) Leave to file a late claim can be submitted within one year. (Gov. Code, § 911.4, subd. (a).) The Complaint must allege the plaintiff’s compliance with the claims submission. (*State of Calif. v. Sup. Ct. (Bodde)* (2004) 32 Cal.4th 1234, 1243-1244.)

Plaintiff alleges that the cause of action accrued on November 20, 2024—the date of OIG’s response to his written formal complaint—and that Plaintiff filed

a claim with respect to that response on October 8, 2025. (Compl., ¶¶7,8.) The Court is not prepared to conclude that the six-month deadline for personal injury or property claims applies to the claims raised in the instant Complaint, which concern “refusing to consider [Plaintiff’s] complaint” (RJN, Exh. 3); thus it appears that Plaintiff has pled compliance with the Government Claims act.

Defendant also demurs on the grounds that the causes of action are not cognizable claims under the moving statute, Penal Code section 832.5, which is cited in each of the first four causes of action, and that the fifth cause of action also does not state a claim. The Court agrees.

Section 832.5(a) states that “Each department or agency in this state that employs peace officers shall establish a procedure to investigate complaints by members of the public against the personnel of these departments or agencies, and shall make a written description of the procedure available to the public.” (Pen. Code, § 832.5, subd. (a)(1).) Plaintiff does not allege that Defendant failed to establish a procedure. Rather, Plaintiff alleges that the LAPD established a procedure and made it public, (Compl., ¶¶52-53), but that Defendant did not act in accordance with its procedures. These allegations do not state a claim. Government liability exists by statute. (Gov.

Code, § 815, subd. (a).) The procedure created by the LAPD does not create a mandatory duty under any statute, including section 832.5. Mandatory duties are imposed by enactments, which are defined as a “constitutional provision, statute, charter provision, ordinance or regulation.” (Gov. Code, §§ 810.6, 815.6.) Plaintiff’s allegations that Defendant did not comply with its own processes does not allege a violation of law, and therefore does not state a cause of action. Count Five is no different; it cites only an alleged violation of LAPD’s policy manual.

The Court sustains the demurrer on that basis. Plaintiff bears the burden to demonstrate that leave to amend should be granted, which must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) This burden is unmet in light of Plaintiff’s non-opposition to the Demurrer.

Conclusion

Defendant City
of Los Angeles’ Demurrer to the Complaint is sustained without leave to amend.

Moving party to give notice.